



Republic of the Philippines
Province of Camarines Norte
MUNICIPALITY OF DAET



OFFICE OF THE SANGGUNIANG BAYAN

EXCERPTS FROM THE MINUTES OF THE 41ST REGULAR SESSION OF THE HONORABLE SANGGUNIANG BAYAN OF DAET HELD VIA VIRTUAL REMOTE SESSION (ONLINE PLATFORM) IN DAET, CAMARINES NORTE ON THE 8TH DAY OF NOVEMBER, 2021 AT 9:08 A.M.

PRESENT:

HON. ROSA MIA L. KING

Municipal Vice-Mayor/ Presiding Officer

MUNICIPAL COUNCILORS

HON. MA. ELIZA H. LLOVIT

HON. TOMASITO SANTIAGO C. TURINGAN

HON. APOLONIO B. PANONG

HON. FELIX C. ABAÑO

HON. WILLIAM CARLO R. AVILA

HON. MARLON T. BANDELARIA

HON. ROSSANO C. VALENCIA

HON. NESTOR F. DALIDA

HON. PEDRO S. MUSA-LNB

HON. JUDY ROSE T. GALLARDO-SKMF

ABSENT:

NONE

Resolution No. 347-2021

RESOLUTION ADOPTING AN ORDINANCE RENAMING THE DAET URBAN AFFAIRS OFFICE (DUPAO) INTO DAET HOUSING AND RESETTLEMENT DEVELOPMENT OFFICE (DHRDO), THEREBY INSTITUTIONALIZING THE SAME THROUGH CREATION OF REGULAR PLANTILLA POSITIONS THEREOF, PROVIDING FOR ITS DUTIES AND FUNCTIONS, AND ALLOCATING FUNDS FOR ITS OPERATION

WHEREAS, Section 9, Article XIII of the Philippine Constitution, ensure that underprivileged and homeless citizens have access to an adequate, safe, secure, habitable, sustainable, resilient and affordable home;

WHEREAS, to focus government efforts to alleviate the plight of the urban poor, the President of the Philippines under Executive Order No. 82 as modified by Memorandum Order No. 68 dated January 22, 1987 created the Presidential Commission for the Urban Poor which shall serve as direct link of the urban poor to the government in policy formulation and program implementation addressed to their needs, henceforth, the Daet Urban Poor Commission was created in Daet and was renamed as Daet Urban Poor Affairs Office by virtue of Municipal Ordinance No. 50 S. 1992;

WHEREAS, Section 16 of the Local Government Code of 1991 provides that every local government unit shall exercise the powers granted and necessary, appropriate, or incidental for its efficient and effective governance, and those which are essential to the promotion of the general welfare, and for this purpose shall ensure and support among

others things, the enhancement of economic prosperity and social justice, and preserve the comfort and convenience of their inhabitants;

WHEREAS, same Code provides that every local government unit shall design and implement its own organizational structure and staffing pattern taking into consideration its service requirements and financial capability, subject to the minimum standards and guidelines prescribed by the Civil Service Commission;

WHEREAS, the Republic Act No. 7279 known as "An Act to Provide for a Comprehensive and Continuing Urban Development and Housing Program, Establish the Mechanism for its Implementation, and for Other Purposes", all municipal governments are mandated to conduct an inventory of all kinds of lands in their respective localities and identify lands for socialized housing and resettlement areas for the immediate and future needs of the availability of basic services and facilities, their accessibility and proximity of jobs sites and other economic opportunities, and the actual number of registered beneficiaries;

WHEREAS, since the creation of Daet Urban Poor Affairs Office in 1992, the operation of the said office is being manned by designated person only with no permanent support staff that hampers the sustainability in the implementation of wide-ranging housing and resettlement development projects of the LGU;

WHEREAS, there is a need to fully institutionalized the office in the LGU Daet to address the increasing problem on housing and resettlement in the municipality;

NOW THEREFORE, after due deliberation, on motion of Councilor Marlon T. Bandelaria, with Councilors Tomasito Santiago C. Turingan and William Carlo R. Avila and Judy Rose T. Gallardo as co-movants, seconded by Councilors Apolonio B. Panong, Ma. Eliza H. Llovit, Nestor F. Dalida, Pedro S. Musa, Rossano C. Valencia and Felix C. Abañio;

BE IT RESOLVED, as it is hereby resolved, to adopt:

MUNICIPAL ORDINANCE NO. 436-2021

AN ORDINANCE RENAMING THE DAET URBAN AFFAIRS OFFICE (DUPAO) INTO DAET HOUSING AND RESETTLEMENT DEVELOPMENT OFFICE (DHRDO), THEREBY INSTITUTIONALIZING THE SAME THROUGH CREATION OF REGULAR PLANTILLA POSITIONS, PROVIDING FOR ITS DUTIES AND FUNCTIONS, AND ALLOCATING FUNDS FOR ITS OPERATION

BE IT ORDAINED, by the Honorable Sangguniang Bayan of Daet, that:

SECTION 1. TITLE. This Ordinance shall also be known as "Institutionalization of Daet Housing and Resettlement Development Office Ordinance" in Daet, Camarines Norte.

SECTION 2. DECLARATION OF POLICY. It is the policy of the Local Government Unit of Daet to ensure the comfort and convenience of its citizen by providing safe and affordable shelter for both urban and rural inhabitants through a sustainable government service of Daet Housing and Resettlement Development Office.



SECTION 3. DEFINITION OF TERMS. As used in this Ordinance, the following words and phrases shall mean as follows:

- a) Housing – refers to a concept related to the process of residing or dwelling whose main attributes are location relative to access to livelihood, tenure arrangements, cost and physical structure, as well as their environment.
- b) Informal Settler Families (ISFs) – refer to households living in a lot, whether private or public, without the consent of the property owner; or those without legal claim over the property they are occupying or those living in danger areas such as esteros, railroad tracks, garbage dumps, riverbanks, shorelines, and waterways.
- c) Rural Development – refers to improvement/development done in a rural area or rural barangay of the municipality.
- d) Underprivileged and homeless citizens - refers to the beneficiaries of this ordinance and to individuals or families residing in urban and urbanizable areas whose income or combined household income falls within the poverty threshold as defined by the National Economic and Development Authority and who do not own housing facilities. This shall include those who live in makeshift dwelling units and do not enjoy security of tenure.
- e) Urban Development – refers to improvement/development done in urban area or urban barangay of the municipality.
- f) Resettlement Areas – refers to areas identified by the Local Government Unit or by any appropriate national agency which shall be used for relocation of the urban/rural poor or underprivileged or homeless citizens.

SECTION 4. RENAMING OF DUPAO AND INSTITUTIONALIZATION OF DHRDO. The Daet Urban Poor Affairs Office is hereby renamed into Daet Housing and Resettlement Development Office (DHRDO) under the Office of the Municipal Mayor.

SECTION 5. DUTIES AND FUNCTION. The Daet Housing and Resettlement Development Office (DHRDO) shall take the lead in the research, documentation, development and management of housing and resettlement program of LGU - Daet, Camarines Norte including on-site and off-site development projects, taking into consideration the networking and linkages with other government agencies, non-government organizations, civil society organizations and real estate developers to uplift the conditions of the underprivileged and homeless citizens in urban areas and in resettlement areas by making available to them decent housing at affordable cost, basic services, and employment opportunities.

Specifically, the office shall:

- a.) Coordinate with the Local Chief Executive in the implementation of shelter development programs;
- b.) Identify lots suitable for housing projects for the poor, qualified and homeless individual;
- c.) Keep and update records of different housing projects in the municipality;
- d.) Keep and update records of housing beneficiaries and their obligations;
- e.) Monitor status of urban poor organizations and homeowners association of the municipality;



- f.) Coordinate with agencies on housing and other housing development projects;
- g.) Help provide livelihood project to deserving beneficiaries; and
- h.) Serve as Secretariat to the Daet Housing and Resettlement Development Board.

In relation thereof, the Daet Housing and Resettlement Development Office (DHRDO) shall implement programs and services which is not limited to the following:

a.) **Housing and Settlement Program**

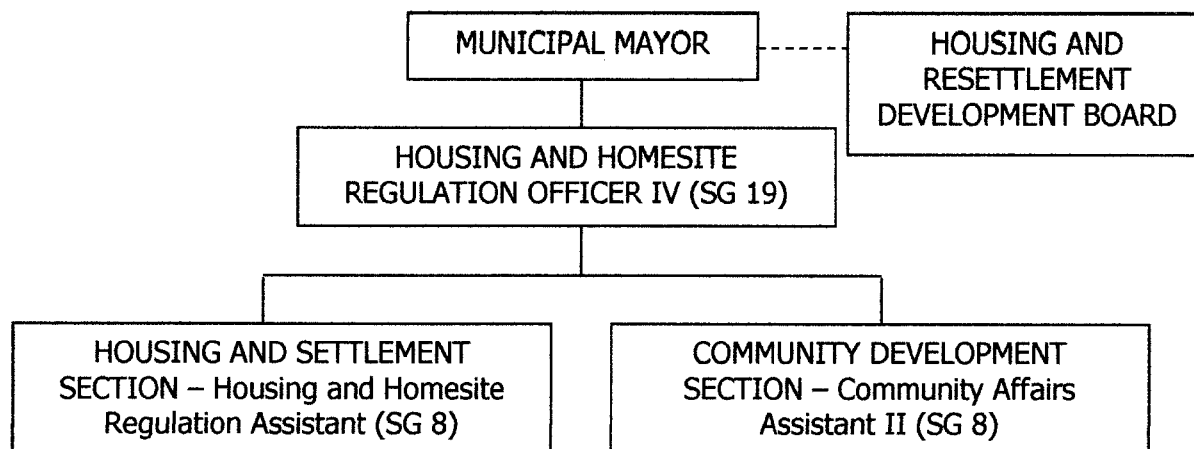
- i. Regular updating of informal settler families in the database;
- ii. Land banking, socialized housing, provision of financial assistance;
- iii. Coordination with MPDO and MDRRMO for land use and hazard related issue of identified lands;
- iv. Negotiation with landowners together with the Community Association;
- v. Inspection of potential land for site suitability;
- vi. Preparation of documentary requirements for application of Community Mortgage Program to SHFC and other government agencies;
- vii. Maintenance and revitalization of cleared area;
- viii. Social preparation to potential beneficiaries of housing project in partnership with other government agencies or civil society organization;
- ix. Establish resettlement site for the underprivileged homeless individual;
- x. Monitor the 20% requirement for socialized housing of private developer.

b.) **Community Development Program**

- i. Conduct Community Formation and Strengthening;
- ii. Facilitate election of officers and board members of Homeowners Association or Community Association;
- iii. Assist Community Associations for accreditation to government agencies such as: HLURB, PCUP and LGU Daet;
- iv. Institutionalize community savings for socialized housing project;
- v. Regular spot audit to community associations engaged in savings program;
- vi. Implementation of resolutions/ordinances pertaining to socialized housing projects regulations.

SECTION 6. ORGANIZATIONAL STRUCTURE. The Daet Housing and Resettlement Development Office (DHRDO) shall be under the Office of the Municipal Mayor with the following Organizational Structure:





SECTION 7. DHRDO PERSONNEL. The regular plantilla positions for the Daet Housing and Resettlement Development Office are hereby created and providing for its qualification requirements:

Position Title	Salary Grade	Qualification Requirement
Housing and Homesite Regulation Officer IV	19	1. Bachelor's Degree 2. With 3 yrs. Relevant Experiences 3. 16 hrs. Of relevant training 4. Career Service (Professional) - Second Level Eligibility
Housing and Homesite Regulation Assistant	8	1. Completion of two years studies in college 2. With 1 year of relevant experience 3. 4 hours of relevant training 4. Career Service (Subprofessional) – First Level Eligibility
Community Affairs Assistant II	8	1. Completion of two years studies in college 2. With 1 year of relevant experience 3. 4 hours of relevant training 4. Career Service (Subprofessional) – First Level Eligibility

There shall be additional support staff in DHRDO under Job Order employment to perform the following tasks:

1. **Clerical** – who shall perform a number of straight clerical duties related to typing work, filing and answering calls and queries, and relaying messages, and other related job as may be required.
2. **Liaison** – who shall collects and delivers inter-and-intra-office communications, operates simple reproduction machines, and other related job as may be required.

SECTION 8. THE HOUSING AND RESETTLEMENT DEVELOPMENT BOARD.
 The Urban/Rural Poor Development Board is hereby named as Housing and Resettlement Development Board with the following composition:

A. Chairperson: The Municipal Mayor or in his/her behalf the
Municipal Administrator

B. Members:

a) From the Government Sector:

- 1) The Chairperson of the Committee on Urban Poor and Rural Settlement of the Sangguniang Bayan;
- 2) The Chairperson of the Sanggunian Committee on Social Services;
- 3) The Chairperson of the Sanggunian Committee on Laws, Rules and Privileges;
- 4) The Head of Office, Daet Housing and Resettlement Development Office (DHRDO) or its equivalent;
- 5) The Head of Office, Municipal Assessor's Office;
- 6) The Head of Office, Municipal Planning and Development Office;
- 7) The Head of Office, Municipal Engineering Office;
- 8) The Head of Office, Municipal Treasurer's Office;
- 9) The Head of Office, Municipal Social Work and Development Office;

b) From the Private Sector:

- 1) Three (3) Presidents from accredited and organized homeowner's organization in Daet North and Daet South chosen by the Local Chief Executive;
- 2) Three (3) representatives of non-government organizations engaged in community organizing and other activities for the development of poor communities in Daet, Camarines Norte provided that only representatives from the non-government organization with no previous conviction or pending cases of crimes involving moral turpitude shall be qualified;

SECTION 9. Within ninety (90) days of the preceding local elections, the Municipal Mayor, shall appoint from the government and private sectors referred under Section 8 of this ordinance the members of the Housing and Resettlement Board for a term which the validity is co-terminous with the Local Chief Executive. Provided, that the Municipal Mayor upon recommendation of the majority of the members of the Board shall terminate the appointment of any member from private sector on any just or valid cause.

SECTION 10. POWERS AND RESPONSIBILITIES. The Board shall exercise the following powers, functions and responsibilities:

- a) To formulate rules and regulation related to housing and resettlement development of the municipality;
- b) To represent the municipal government and to coordinate with the Housing and Land Use Regulatory Board (HLURB) and the Housing and Urban Development Coordinating Council (HUDCC) in formulating a Local Shelter Plan;
- c) To recommend programs and policies for the rationalization of existing land use plans, housing programs and all other projects and activities of the municipal government and the private sector which may substantially affect land use patterns, transportation and public utilities, environment and population movements and the Municipal Comprehensive Land Use Plan;



- d) To recommend to the municipal government a continuing inventory and identification of lands for socialized housing and as resettlement areas for the immediate and future needs of the poor, underprivileged and homeless in the locality, taking into consideration the degree of availability of the basic services and facilities, their accessibility and proximity to job sites and other economic opportunities and the actual number of beneficiaries;
- e) To draft and recommend to the municipal government the terms, conditions and other stipulations of contracts with landowners, beneficiaries, developers and other parties relative to the implementation of the program;
- f) To recommend to the municipal government the expropriation of idle lands or urban and urbanizable areas and the alternative schemes for the disposition or the same and other inventories or identified land to beneficiaries;
- g) To formulate and recommend a system for the registration of qualified program beneficiaries;
- h) To formulate and recommend a system that will provide opportunities for adequate consultation with private sector involved in socialized housing and other development projects, as well as for program beneficiaries to be heard and to participate in the decision making process over matters involving the protection and promotion of their legitimate collective interests which shall include appropriate documentation and feedback mechanisms;
- i) To adopt measures to identify and effectively curtail the nefarious and illegal activities of professional squatters and squatting syndicates;
- j) To formulate guidelines for the lawful and humane relocation and resettlement of persons living in danger areas such as esteros, garbage dumps, river banks, floodway's, waterways, foreshore land and in other public places such as sidewalks, roads, parks and playgrounds, provided that relocation and resettlement sites shall be afforded basic services and facilities and access to schools, day care center, employment and livelihood opportunities sufficient to meet the basic needs of affected families;
- k) To promote the production and use of indigenous alternative and low-cost construction materials and technologies for socialized housing and to devise a set of mechanisms including incentives to the private sector so that a viable transport system shall evolve and develop in urban areas;
- l) To recommend urban/rural activities for the conservation and protection of vital unique and sensitive ecosystem, scenic landscapes, cultural sites and other similar resource areas;
- m) To formulate, develop and recommend housing programs for all lands and areas already identified by the municipal government as suitable for socialized housing;
- n) To act as the municipal's arm in the monitoring of all other pertinent provision of Republic Act No. 7279 and local ordinances on housing and resettlement;
- o) To coordinate and cooperate with any and all national and municipal agencies offices and bodies in the exercise of all the foregoing powers, functions and responsibilities.

SECTION 11. THE BOARD SECRETARIAT. The Daet Housing and Resettlement Development Office (DHRDO) shall act as the Secretariat of the Development Board. The Secretariat shall be responsible for providing technical assistance and administrative support, documenting proceedings, preparing reports and providing such other assistance as may be required by the Development Board. The Secretariat may avail of the services of any NGO of educational or research institution for this purpose.



SECTION 12. FUNDING. In consideration to the financial capability of LGU Daet, the amount necessary for the salaries, benefits, and incentives of created regular plantilla positions for DHRDO shall be funded on the following schedule:

Position Title	Salary Grade	FY
Housing and Homesite Regulation Officer IV	19	2022
Housing and Homesite Regulation Assistant	8	2023
Community Affairs Assistant II	8	2024

The amount necessary for the operation of the office shall be appropriated annually under the Office of the Mayor beginning FY 2022.

SECTION 13. SEPARABILITY CLAUSE. If any reason any part or provision of this ordinance shall be held to be unconstitutional or invalid, other parts or provisions hereof which are not affected thereby shall continue to be in full force and effect.

SECTION 14. REPEALING CLAUSE. All any ordinances, rules and regulation found inconsistent with any provision of this ordinance are hereby repealed and amended accordingly.

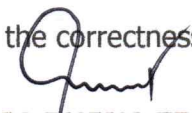
SECTION 15. EFFECTIVITY. This ordinance shall take effect upon approval.

ENACTED.

RESOLVED FURTHER, to furnish copies hereof all concerned for their information and appropriate action.

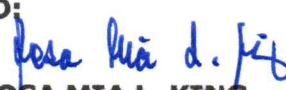
CARRIED UNANIMOUSLY.

I HEREBY CERTIFY to the correctness of the foregoing.


MARIA BUENA FE Z. LUARES
Secretary to the Sangguniang Bayan


COUN. MARLON T. BANDELARIA
Proponent

ATTESTED:


ROSA MIA L. KING
Municipal Vice-Mayor/ Presiding Officer

APPROVED


BENITO S. OCHOA
Municipal Mayor

Date: NOV 15 2021